

has no reasonable likelihood of prevailing in the action. (*Id.* at p. 640 [citation omitted].)

Whether Plaintiffs are Vexatious Litigants

Plaintiffs were deemed vexatious litigants on 6/26/23 in the *Young v. Byars* matter (Case No. 2017-00924659), which was affirmed by the Court of Appeal. (Ammar Decl., ¶ 19, Exs. I and J.)

Thus, the Court finds Plaintiffs have been deemed vexatious litigants.

Whether Plaintiffs Have a Reasonable Probability of Prevailing

Plaintiffs bring 11 causes of action in their amended complaint. Underlying each of the causes of action are Plaintiffs' contentions Defendants fraudulently obtained Plaintiffs' consent to assign their judgments to Collect Co.

This issue has been addressed repeatedly, including in this action and the *Byars* action, and found to lack merit each time.

Primarily, Plaintiffs contend they never executed any Client Agreement with Collect Co and the Adobe Sign records and metadata do not reflect Plaintiffs' execution of a "Client Agreement." (J. Young Decl. ¶¶ 3-7, 17-18.)

Plaintiffs filed an appeal of various orders in the *Byars* matter. In affirming those orders, the Court of Appeal discussed the background of that case in which it stated Plaintiffs "have become their own worst enemy" and have engaged in "intransigent conduct." (Ammar Decl., Ex. J at p. 2.)

The Court noted Plaintiff filed an ex parte application to "Rescind (Vacate) 'Acknowledgment of Assignment of Judgment' Filed by [Collect Co.] and to Terminate any Actions by [Collect Co.]," which was denied. The Court stated, "In their joint sworn declaration filed in support of the ex parte application, plaintiffs acknowledged signing and notarizing the Assignment, and they attached email correspondence between them and Collect Co. showing they had signed the Agreement electronically. Although plaintiffs asserted they could not remember signing the Agreement, they stated: "[i]f we did send our electronic signatures, it must have been done based on the trust to [the attorney with whom they had met] and the signatures must have been sent out without understanding or knowledge of the content. In other words, the 'Judgment Agreement' were [sic] electronically signed without any discussion and explanation by an attorney to us." (Ammar Decl., Ex. J at p. 5.)

The Court further stated:

Plaintiffs did not take no for an answer. Over the next several months, plaintiffs filed three more ex parte applications and two combined noticed motions, all seeking to undo the Assignment. All of the motions and applications were denied.”

By way of example, on October 12, 2021, plaintiffs filed a “Motion for Order to Enforce ‘Reassignment’; or Alternatively, to Strike Acknowledgment of Assignment of Judgment.” In that motion, plaintiffs alleged Collect Co. sent the Agreement to them as an attachment to an email and they electronically signed it without noticing or reading the attachment. Plaintiffs also asserted they signed and notarized the Assignment without reading its contents based on the trust they had for their attorney. They contended they did not know about the assignment of the judgment until August 15, 2021, when they asked their attorney to stop collection efforts against McIntyre. On November 10, 2021, the trial court held a hearing and denied plaintiffs’ motion. The court explained: “the Court fully considered the evidence presented on this issue and found on the merits that the assignment was valid and binding.”

(Ammar Decl., Ex. J at p. 6.)

The Court stated even after Plaintiffs were deemed vexatious litigants, “plaintiffs continued to file numerous additional motions and other papers, all in an attempt to vacate the court’s prior rulings, relitigate the validity of the Assignment, and stop enforcement by Collect Co. of its fee award. All of those efforts also were unsuccessful.” (Ammar Decl, Ex. J at p. 7.)

Plaintiffs filed the instant matter in 2022 and have made the same attempts to challenge prior court rulings, relitigate the validity of the Assignment, and stop enforcement by Collect Co of its fee awards.

On 5/22/23, the Court denied Plaintiffs’ motion for a preliminary injunction. (ROA 199.) In denying the motion, the Court stated:

Plaintiffs also concede they signed documents without reading them. Plaintiffs do not declare that they were prevented from reading or reviewing the documents they signed. Additionally, while Mrs. Young declares that “my husband and I have never signed any Client Agreement” and that “Ali Ammar/ Collect Co pasted our signatures on the Client Agreement,” these statements are contrary to their admissions. (¶14 of Young Declaration.) Plaintiffs repeatedly concede executing the document attached and referred to by Defendant as a “Judgment Agreement.” (¶9 and ¶13 of Jennifer Young Declaration.)

Additionally, despite Defendants’ alleged mis-labeling of the documents in email communications, a review of the documents themselves demonstrates that their content is clear: The document which Plaintiff Young declares Defendant called a “Judgment Agreement” and which is attached as Exhibit Three to the Jennifer Young Declaration is in fact clearly labelled as a “Client Agreement” between William and Jennifer Young (“Client”), on the one hand, and Collect Co. (“COCO”), on the other. (¶14 of Jennifer Young Declaration and Exhibit Three thereto.) Moreover, the document indicates that “Client shall irrevocably assign all the judgments listed on the below Schedule A to COCO within 7 days after the date of this Agreement.” (Id.) The Agreement thereafter clearly identifies five separate judgments. (Id.) Similarly, the “Acknowledgment of Assignment of Judgment” which Plaintiffs declare Defendant referred to as a “Court Form,” is likewise clear. (¶17 of Jennifer Young Declaration and Exhibit Five thereto.) This document states: “For a valuable consideration, receipt of which is hereby acknowledged, William Young and Jennifer Young does hereby irrevocably grant and assign to Collect Co all right, title, and interest in the \$91,217.00 judgment entered in the above entitled case on January 22, 2018.” (Id.) Plaintiffs concede having signed and notarized this document. (¶18 of Young Declaration.)

(ROA 199 at p. 5.)

The Court also rejected Plaintiffs’ argument that Ammar fraudulently concealed his identity or misrepresented his identity in email communications. (ROA 199 at p. 3.)

Plaintiffs again raised this issue in a second motion for preliminary injunction based on purported new documentary evidence. The motion was denied on 4/27/26 as the evidence was neither new nor was it “previously unavailable” to the Court in considering Plaintiffs’ prior motions for preliminary injunction. The motion was also denied on ground the Court could not enjoin enforcement or collection actions permitted by orders issued by another department of this court. (ROA 450.)

In opposing this motion, Plaintiffs make the same contentions, i.e., that Plaintiffs did not execute a Client Agreement. Again, this contention has been rejected numerous time both by the *Byars* court and this Court.

In support of their argument, Plaintiffs contend, “A criminal investigator documented that the signatures attributed to Plaintiffs were cut-and-pasted images, not electronically captured signatures. Defendants’ own exhibits are consistent with that finding.” (Opp. at 6:10-14; J. Young Decl., ¶ 19.)

The report to which Plaintiffs cite states, however:

Further, based on my review of the signed Adobe Sign document and the details from that document that I was able to view, it was evident that the document was sent to William and Zhanfen's actual email address for review and e-signature. The activity listed in Adobe Sign showed they e-signed the document. This contradicted Zhanfen's claim that she and William's signatures were forged. The conclusion of this investigation is that Zhanfen's and William's signatures, which were e-signed were legitimate and the crime of forgery is unfounded, there are no further steps to be taken.

(Ammar Decl., Ex. G at p. 6 of 6.)

Plaintiffs also contend Defendants concealed the fact "John Adams" was a fictitious name used by Ammar and Plaintiff were not informed "of the true identity of the individual making settlement demands." (Opp. at 6:24-28.) Plaintiffs do not demonstrate, however, Defendants had a duty to disclose the fact to the plaintiff (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248) or how Ammar's use of "John Adams" resulted in Defendants' fraudulently obtaining the Client Agreement.

Plaintiff further contend Defendants' standing "has never been adjudicated on the merits in this action," and "Collect Co, despite not being a party, repeatedly sought and obtained relief ordinarily available only to parties, including enforcement relief and vexatious litigant determinations, without any adjudication conferring standing or authorizing alteration of case-party designations." (Opp. at 7:4-8.)

Collect Co's standing was addressed by the Court of Appeal in connection with the *Byars* matter. The Court stated Plaintiffs' contention "Collect Co. lacked standing to file the vexatious litigant motion is just wrong. . . . Collect Co., *became a party to the action*—as plaintiffs' assignee of record who stepped into plaintiffs' shoes—when it filed the Assignment in the action. . . . The court repeatedly rejected plaintiffs' multiple challenges to the validity of the Agreement and Assignment; plaintiffs' persistent refusal to accept those rulings did not deprive Collect Co. of standing in the action to seek relief from the court. (Ammar Decl., Ex. J at pp. 13-14.) Plaintiffs provide no authority to the contrary.

Finally, while Plaintiffs contend security is not appropriate as the matter is actively being litigated, "[t]he grant of a section 391.1 motion does not preclude a trial; it merely requires a plaintiff to post security." (*Moran v. Murtaugh Miller Meyer & Nelson, LLP* (2007) 40 Cal.4th 780, 786.)

Given the above, the Court finds Defendants have met their burden of demonstrating Plaintiffs have no reasonable probability of prevailing in the action.

Amount Sought

Defendants seek \$150,000.00 in security.

Code of Civil Procedure section 391.3, subdivision (a) provides, “Except as provided in subdivision (b), if, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix.”

Section 391 defines security as “an undertaking to assure payment, to the party for whose benefit the undertaking is required to be furnished, of the party’s reasonable expenses, including attorney’s fees and not limited to taxable costs, incurred in or in connection with a litigation instituted, caused to be instituted, or maintained or caused to be maintained by a vexatious litigant.”

Defendants contend Collect Co has incurred approximately \$25,000.00 in legal fees and costs in this action. (Ammar Decl., ¶ 27.) Defendants further contend Collect Co incurred approximately \$275,000.00 and \$50,000.00 in two other related actions (Ammar Decl., ¶¶ 22-26.)

Considering the history of this litigation and Plaintiffs’ conduct, including Plaintiffs’ multiple filings to obtain the same relief while making the same rejected contentions, the Court finds a reduced amount of \$100,000.00 to be reasonable.

Likely Use of Generative Artificial Intelligence

This is now the third time the Court has addressed Plaintiffs’ apparent use of artificial intelligence (AI) in their filings with the Court.

On 12/8/25, the Court noted “pinpoint cites referred to in Plaintiff’s declaration do not exist as quoted and does not apply” and stated “[p]hantom citations will not be considered.” (ROA 412.)

On 4/27/26, the Court again noted Plaintiffs’ opposition included quotations that are not found in the cases cited. The Court admonished Plaintiffs to carefully read and verify citations used in any future filings with the Court and that the failure to do so may result in the imposition of monetary sanctions and other appropriate corrective action. (ROA 453.)

	The Court now notes for the third time Plaintiffs have included quotations or propositions that are not found in the cases cited. For example, while Plaintiffs cite <i>Alvarez v. Wells Fargo Bank</i> (2013) 216 Cal.App.4th 1191, 1203-1204 at page 9, line 27 of the opposition, no such case exists, nor does a different unpublished case with the same name address any of the issues relevant to this motion. Similarly, Plaintiffs cite to <i>Garcia v. Lacey</i> (2014) 231 Cal.App.4th 402, 407-408 for various propositions that are unsupported by this case. The same issue applies to Plaintiffs' citation of <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal.App.4th 775, 779-780. As such, Plaintiffs appear to have violate the Court's prior order to carefully read and verify citations used in any future filings with the Court. Plaintiffs are ordered to appear and discuss the inaccuracies and discrepancies with the court at the hearing. If the court decides to issue an order to show cause, a separate hearing will be set. The Court GRANTS Defendants' Motion for an Order Requiring Security and ORDERS Plaintiffs to post security in the amount of \$100,000.00 within thirty (30) days.
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